

James O'Brien

Intellectual Property Attorney

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LinkedIn

Technology-focused IP counsel advising startups and Fortune 500 clients on patent strategy, software licensing, and M&A due diligence. Admitted to practice in Massachusetts and before the USPTO.

EXPERIENCE

Partner, Technology & IP Practice

Jan 2019 – Present

Halcyon & Partners LLP · Boston, MA

Lead counsel for venture-backed SaaS and biotech clients on IP portfolio development and litigation avoidance.

- Negotiated 40+ enterprise software license agreements exceeding \$500M aggregate value.
- Managed patent prosecution docket of 200+ applications across AI, cybersecurity, and med-device.
- Led IP diligence for 12 acquisitions; flagged material risks in 3 deals pre-close.

Patent Examiner (Art Unit 2129)

Aug 2012 – Dec 2018

USPTO · Alexandria, VA

Examined software and business method applications; authored office actions and interviews.

- Consistently exceeded production and quality metrics.
- Trained new examiners on 101 subject matter eligibility guidelines.

VOLUNTEER

Volunteer Patent Attorney

Mar 2020 – Present

Boston Patent Law Association Pro Bono Clinic

Provide pro bono patent advice to individual inventors and university spin-outs.

- Counseled 25 inventors on provisional application strategy.
- Drafted two issued patents for nonprofit medical device innovators.

EDUCATION

Boston University School of Law

2009 – 2012

Juris Doctor, Law · cum laude

- Intellectual Property Law
- Patent Law
- Technology Transactions
- Antitrust and IP

MIT

Sep 2005 – Jun 2009

Bachelor of Science, Electrical Engineering and Computer Science · 3.7 GPA

- 6.033: Computer Systems Engineering
- 6.170: Software Studio

- 18.06: Linear Algebra

PROJECTS

Patent Claim Chart Generator

Jun 2022 – Feb 2023

Halcyon & Partners LLP · application · Product owner, Technical advisor

Internal tool automating claim chart assembly from prosecution history PDFs.

Python, Legal tech, Patents, Automation

- Reduced associate prep time by 60% on invalidity opinions.
- Uses Python and pdfplumber with custom NLP pipeline.

Licensing 101 for Founders

2021 – Present

MassChallenge · talk · Speaker, Author

Quarterly workshop series for accelerator cohorts on IP basics and cap table-safe licensing.

Education, Startups, IP strategy

- Delivered to 300+ founders across MassChallenge and Techstars.
- Materials published under CC BY-SA license.

SKILLS

Patent Prosecution

Master — Software patents, Continuation strategy, Office action responses, Appeals

Transactions

Senior — IP due diligence, License drafting, Escrow, Indemnification

Technical Fluency

Advanced — Distributed systems, Machine learning, API design, Cloud architecture

AWARDS

IAM Patent 1000 – Recommended Individual

2025

Intellectual Asset Management

Recognized among leading patent practitioners in Massachusetts for software and AI technologies.

BU Law Alumni Public Service Award

Apr 2023

Boston University School of Law

Honoured for sustained pro bono patent clinic work supporting underserved inventors.

CERTIFICATES

USPTO Registration Number 72,451

Nov 2012

United States Patent and Trademark Office

Massachusetts Bar Admission

Nov 2012

Massachusetts Board of Bar Examiners

PUBLICATIONS

Open Source Compliance in Enterprise Acquisitions

Jul 2024

IP Law360

Checklist framework for identifying copyleft exposure during technical due diligence.

AI Inventorship After Thaler

2023

Boston University Journal of Science & Technology Law

Analysis of US and EU approaches to patent eligibility for AI-generated inventions.

LANGUAGES

English — Native

Irish Gaelic — Conversational

INTERESTS

Historical Legal Documents

Manuscripts, Archives, Colonial-era contracts

Sailing

Boston Harbor, Cruising, Navigation

REFERENCES

Victoria Chen, General Counsel

James is the rare attorney who reads the code and the claims with equal rigour. He saved our Series C round from a material OSS liability we would have missed.

Robert Walsh, Managing Partner

Clients trust James because he translates complex IP risk into business decisions. He has grown our tech practice significantly since making partner.